

ASSOCIATION OF BC FOREST PROFESSIONALS
NEGOTIATED SETTLEMENT

In the matter of Joshua M. Hiebert RFT, ATC - Case 2020-01

Note:

Pursuant to Section 23 (1) of the *Foresters Act* and in accordance with ABCFP Bylaw 13.15, the settlement terms and admissions set out below must be accepted by a panel of the Discipline Committee in order to be effective. If the terms and admissions are not accepted by a panel, the fact that they were agreed to will not be used against Mr. Hiebert in a discipline hearing nor may they be disclosed to any panel struck to conduct a discipline hearing or to any other party unless required by law.

1. I, Joshua Hiebert, RFT, ATC:

- (a) represent that I have fully disclosed to the ABCFP my conduct in respect of the Notice of Complaint dated December 6, 2019;
- (b) acknowledge and admit that, in managing the tenures for [REDACTED] on Timber License T0629 and Forest License A59539 situated in the Lower East Creek area on Vancouver Island, between November 2014 and October 2015, I failed to submit amendments for six cut-blocks, resulting in the unauthorized harvest incursion of approximately thirteen hectares of provincial forest;
- (c) acknowledge that a lack of diligence on my part required other forest professionals to undertake a thorough review of my past decisions and resulted in my former employer's non-compliance with the *Forest Act*, with the potential for fines and/or other remedial measures;
- (d) acknowledge and admit that in failing to submit the appropriate cutting authority amendments to the province, I breached the following ABCFP Bylaws with respect to my responsibilities to the public, the profession and my employer:
 - (i) 11.3.3 - To have regard for existing legislation, regulation, policy and common law; and to seek to balance the health and sustainability of forests, forest lands, forest resources, and forest ecosystems with the needs of those who derive benefits from, rely on, have ownership of, have rights to, and interact with them.
 - (ii) 11.4.1 - To inspire confidence in the profession by maintaining high standards in conduct and daily work.
 - (iii) 11.5.1 - To act conscientiously and diligently in providing professional services.

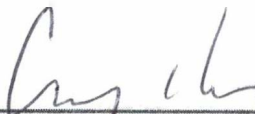
- (e) undertake that I will implement the following measures to improve my practice and the practice of other forestry professionals working under my supervision or direction, with a view to preventing the types of errors or oversights that occurred in these circumstances:
 - (i) complete the ABCFP's Standards of Professional Practice Refresher Course and and ABCFP's Professional Reliance modules by June 1 2021; and
 - (ii) complete an ABCFP practice review by June 1 2021.
 - (f) pay a fine of \$1,000 to the ABCFP.
 - (g) acknowledge that a summary of this Negotiated Settlement will be made available to the public through a Discipline Case Digest published on the ABCFP's website and that my name will be published with the digest; and
 - (h) acknowledge that I have either obtained independent legal advice before signing this Negotiated Settlement or have voluntarily chosen not to do so.
2. The ABCFP, through its registrar:
- (a) has indicated to Mr. Hiebert that any breach of the undertakings he has given in this Negotiated Settlement or any misrepresentation made in this Negotiated Settlement will result in the matter being forwarded to the Complaints Resolution Committee for referral to the Standing Investigations Committee or the Discipline Committee, whichever is deemed appropriate; and
 - (b) has further indicated to Mr. Hiebert that the December 2019 Notice of Complaint will be placed on file and may be considered by the ABCFP in the event of any future complaint against Mr. Hiebert alleging similar errors or oversights.

Joshua Hiebert, RFT, ATC



Date: April 29, 2020

Casey Macaulay, MA, RPF - Registrar and Director of Act Compliance



Date: April 29, 2020

ACCEPTED BY DISCIPLINE COMMITTEE PANEL

Name: John Dunford, RPF - Panel chair

Date: May 11 2020



Name: Jim Crover, RPF(Ret)

Date: May 11 2020



Name: Wendy Royle, lay member

Date: May 11 2020

